30.10.2026
Item No.88
Ct.No. 8
tbsr/MD

CRR 2906 of 2026

In the matter of : Sadhan Das & Ors.

.....Petitioners.

Mr. Sankar Pal
Kumari Shipra Roy

.....for the Petitioners.

Learned advocate appearing for the petitioners has challenged the proceedings in Complaint Case No. 148 of 2026 pending before the ACJM, Kalyani in Nadia. The case has subsequently been transferred by an order dated 24.04.2026 to the Learned Judicial Magistrate, First Class, Kalyani, Nadia. Till now, process has not been issued and notice has been issued only on the present petitioners. The petitioners are proposed accused persons as cognizance has not been taken.

The petitioners would be at liberty to canvass all the issues raised by the present petitioners before the Learned Judicial Magistrate *in seisin* of the case. However, upon an assessment of the issue canvassed, I am on the opinion that the case has not matured for invoking the jurisdiction under Section 528 of the BNSS.

As such, with the aforesaid observations, the revisional application being CRR 2906 of 2026 is disposed of.

All concerned parties shall act on the server copy of this order duly downloaded from the official *website* of this Court.

Urgent photostat certified copy of this order, if applied for, be supplied to the parties upon compliance with all requisite formalities.

(Tirthankar Ghosh, J.)